

Ross on Crime

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Coincidence

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Coincidence

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[3.2800] Origin of the term

The term “coincidence” comes from the *Uniform Evidence Acts* s 98. The section carried the heading: **The coincidence rule**. In [R v Ellis \(2003\) 58 NSWLR 700; 144 A Crim R 1](#) (CCA, Full Bench) Spigelman CJ, with whom the other judges agreed, spoke of the changes brought about by the *Uniform Evidence Acts*. His Honour said (at 716; 17 [74]–[75]):

Parliaments intended to lay down a set of principles to cover the relevant field to the exclusion of the common law principles previously applicable.

What is referred to as “coincidence evidence” was previously referred to as “similar fact evidence”...The use of different terminology with precise and comprehensive definitions, manifests an intention to state principles comprehensively and afresh.

[3.2805] The coincidence rule

Section 98 of the *Uniform Evidence Acts* provides:

98 The coincidence rule

- (1) Evidence that 2 or more related events occurred is not admissible to prove that, because of the improbability of the events occurring coincidentally, a person did a particular act or had a particular state of mind if:
 - (a) the party adducing the evidence has not given reasonable notice in writing to each other party of the party's intention to adduce the evidence; or
 - (b) the court thinks that the evidence would not, either by itself or having regard to other evidence adduced or to be adduced by the party seeking to adduce the evidence, have significant probative value.
- (2) For the purposes of subsection (1), 2 or more events are taken to be related events if and only if:
 - (a) they are substantially and relevantly similar; and
 - (b) the circumstances in which they occurred are substantially similar.
- (3) Paragraph (1)(a) does not apply if:
 - (a) the evidence is adduced in accordance with any directions made by the court under section 100; or
 - (b) the evidence is adduced to explain or contradict coincidence evidence adduced by another party.

Note: Other provisions of this Act, or of other laws, may operate as exceptions to the coincidence rule.

The coincidence rule and tendency rule constitute what at common law is termed similar fact evidence.

[3.2810] Significant probative value: s 98(1)(b)

The term is discussed under **Tendency** (“Significant”) at [\[20.715\]](#).

Further, probative value was discussed (not under *Uniform Evidence Acts*) in *Phillips v The Queen* (2006) 225 CLR 303; 158 A Crim R 431; 224 ALR 216. There were five separate complainants

alleging sexual assault. There was no special quality about the assaults. The court said in a joint judgment (at 318; 228; 443–444 [47]):

Whether or not similar fact evidence could ever be used in relation to consent in sexual cases, it could not be done validly in this case. It is impossible to see how, on the question of whether one complainant consented, the other complainants' evidence that they did not consent has any probative value. It does not itself prove any disposition on the part of the accused: it proves only what mental state each of the other complainants had on a particular occasion affecting them, and that can say nothing about the mental state of the first complainant on a particular occasion affecting her.

[3.2815] Substantially and relevantly similar: s 98(2)(a)

In *R v Zhang* (2005) 196 FLR 152; 227 ALR 311; 158 A Crim R 504 (NSW CCA) Simpson J, with whom Buddin J agreed, said (at 537 [140]):

In the case of coincidence evidence, an anterior step is required by subs (2) of s 98. It is necessary to determine whether the two or more events the subject of the tendered evidence are substantially and relevantly similar and whether the circumstances in which they (are alleged to have) occurred are substantially similar. Since admission of the proposed evidence depends upon the existence of relevant similarities, it is obvious that this assessment is to be made by the judge and not left to the tribunal of fact.

In *R v Watkins* (2005) 153 A Crim R 434 (NSW CCA) Barr J, with whom the other judges agreed, said (at 442 [41]):

A consideration of whether events are substantially and relevantly similar requires an examination not only of the ways in which they are alike but of the ways in which they are unlike, at least where differences are pointed to by counsel, as they were here.

In *Samadi v The Queen* (2008) 192 A Crim R 251; [2008] NSWCCA 330 it was noted:

[57] In *R v Zhang* [2005] NSWCCA 437; 158 A Crim R 504 Simpson J observed, at [141], that a determination under s 98 “is essentially evaluative and predictive” and requires an assessment upon which “reasonable minds may differ”: see also *R v Fletcher* (2005) NSWCCA 338; 156 A Crim R 308 at [32] - [35].

In *Feng v The King; DPP v Feng* [2023] VSCA 196 the Court, at [47]-[48], emphasized that in admitting coincidence evidence it is important to identify the exact reason for its admission, ie whether it is being admitted to establish identity, the commission of the act or for credibility.

[3.2820] Notice: s 98(1)(a)

Section 98(1)(a) of the *Uniform Evidence Acts* says that the evidence is not admissible if the party adducing the evidence has not given reasonable notice in writing.

In *R v Zhang* (2005) 196 FLR 152; 227 ALR 311; 158 A Crim R 504 (NSW CCA) Simpson J, with whom Buddin J agreed, said (at 535 [131]):

A properly drafted s 98 Notice involves the identification of four matters.

These are:

- the two or more related “events” the subject of the proposed evidence;
- the person whose conduct or state of mind is the subject of the proposed evidence;
- whether the evidence is to be tendered to prove that a person did a particular act, and, if so, what that “act” is;
- whether the evidence is to be tendered to establish that the person had a particular state of mind, and, if so, what that “state of mind” is.

[3.2823] Relationship evidence and res gestae

The coincidence rule does not apply to the admission of what at common law is called relationship evidence or res gestae. This type of evidence continues to be governed by the common law: see, *Roach v The Queen* (2011) 242 CLR 610; 210 A Crim R 300; [2011] HCA 12; *Samadi v The Queen* (2008) 192 A Crim R 251; [2008] NSWCCA 330; *LJW v The Queen* [2010] NSWCCA 114.

[3.2825] Application

Not coincidence

In *R v Milenkovic* (2005) 158 A Crim R 4 (NSW CCA) the prosecution appealed a trial judge's ruling to exclude coincidence evidence. The case was this. The accused was charged with armed robbery with others in which a stolen car and a getaway car were used. The accused's DNA was found on a wrench in one car. The claimed coincidence evidence connected the accused with later armed robberies of much the same sort. His Honour had excluded the evidence because stolen cars and getaway cars were the stock in trade of armed robberies. The court dismissed the prosecution's appeal.

[3.2830] Other references

See also

Propensity at [16.6300]; **Similar facts** at [19.4400]; and **Tendency** at [20.700].

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